		million bonus and a $500,000 severance payment and not a fundamental public policy].) The court therefore finds none of the arbitration agreements are substantively unconscionable, and therefore Plaintiffs cannot establish unconscionability. The case is STAYED pending arbitration. Arbitration Status Review set for 5/20/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
6	**Boyd vs. Fernandez 30-2025-01523882-CU-PA-CJC**	**Motion to Strike Portions of Complaint** Off calendar at request of moving party.
7	**Byer vs. City of La Palma 30-2024-01394359-CU-OE-CJC**	**Motion for Relief from Untimely Memorandum of Costs** Plaintiff's Motion for Relief from Untimely Memorandum of Costs is GRANTED. Notice of entry of judgment was served via email on 12/22/2025, but Plaintiff's counsel did not file the memorandum of costs until 2/17/2026 (57 days later) due to a calendaring error. The court rejects defendant's contention the court is limited to the 30-day extension in California Rules of Court, rule 3.1700(b)(3). Plaintiff seeks relief on grounds of inadvertence or excusable neglect. (Code Civ. Proc., § 473, subd. (b); see *Pollard v. Saxe & Yolles Dev. Co.* (1974) 12 Cal.3d 374, 381 ["In the absence of prejudice, the trial court has broad discretion in allowing relief on grounds of inadvertence from a failure to timely file a cost bill."]; see also *Hoover Community Hotel Development Corp. v. Thomson* (1985) 168 Cal.App.3d 485, 488 [limitation of time to file costs bill is not jurisdictional].) Plaintiff has demonstrated the calendaring error was the result of counsel's excusable neglect involving a new legal assistant who mistakenly calendared the memorandum of costs due at the same time as the motion for attorney fees. Defendant has not demonstrated substantial prejudice. Defendant is granted leave to file a motion to strike or tax costs within 15 days.

		Motion for Attorney and Expert Witness Fees Plaintiff's Motion for Attorney Fees and Expert Witness Fees is GRANTED in the reduced sum of $987,265.25. Undisputed expert fees of $11,862.50 and undisputed paralegal fees of $4,650.00 are GRANTED. Plaintiff's request for attorney fees under FEHA is based on 908 hours of attorney time at rates of $950/hour for attorney Petronelli and $500/hour for attorney Vanderpool, plus a 1.8x multiplier enhancement, for a total of $1,451,619.00. A party seeking a fee award has the burden of establishing entitlement to an award, and of documenting the appropriate hours spent, and the hourly rates. (*569 East County Blvd. LLC v. Backcountry Against the Dump, Inc*. (2016) 6 Cal.App.5th 426, 432; *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 486.) In challenging an attorney fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive are insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.) Defendant argues the hourly rates and hours billed are excessive and a 1.8x multiplier is unwarranted. Defendant contends an overall reduction of at least 20-30% is appropriate for duplication, overstaffing, and excessive and unreasonable hours. (Opp. at 11:4-12.) Based on the average attorney fees for employment litigation in Orange County, the complexity of this matter, and the Court's observations of the experience and skill of Plaintiff's counsel, the Court finds that an hourly rate of $850 for attorney Petronelli and $450 for attorney Vanderpool is reasonable. Plaintiff's counsel exercised skill in trying the case and achieved a good result for the client even though a reverse discrimination claim by a Caucasian employee is less common. The legal and factual issues in the case were not especially novel or complex for a FEHA discrimination lawsuit, but counsel took a risk in this atypical case, defendant vehemently denied all liability (even in the face of what the court considers the undeniable reality Sergeant Koh and Captain Amend presented as less-than-credible witnesses), and the policy behind FEHA's fee-shifting statute is to attract lawyers to enforce civil rights laws with an understanding they will be paid a reasonable fee if they

prevail. (See *Flannery v. Prentice* (2001) 26 Cal.4th 572, 582-583.) Plaintiff found skilled lawyers in this difficult case.

Defendant identifies billing entries reflecting duplicative or excessive work by the two attorneys, such as both attorneys participating in the same depositions and reviewing the same deposition transcripts, 154 hours opposing summary judgment, and 40 hours related to the *Pitchess* motion. Defendant also identifies billing for clerical/administrative tasks such as preparing notices of intent to use deposition testimony, preparation of exhibit/witness lists, and witness scheduling communications, which could have been performed by a legal assistant or paralegal.

Overall, although it was reasonable for two attorneys to work on this matter, the court agrees certain work was duplicative, excessive, or clerical. Therefore, the court reduces the total hours by 10%.

The court also declines to award fees for the 6.5 hours billed for the instant motion. The motion was only necessary due to Plaintiff's counsel's error.

Plaintiff requests a 1.8x multiplier based on factors including the contingent risk, preclusion from other employment, public interest, and quality of representation. Defendant contends that at most, any multiplier should be limited to 1.25 and should not include post-trial work because there is a reduced contingent risk at this stage.

Based on the factors set out in *Ketchum v. Moses* (2001) 24 Cal.4th 1122, the Court finds a 1.65x multiplier appropriate to reflect the contingent risk of this case, preclusion of other employment, and the quality of counsel's representation which resulted in a favorable verdict for Plaintiff.

The court awards attorney fees as follows:

Attorney Petronelli: 619.9 hours x 90% = 557.9 x $850/hour = $474,215.00

Attorney Vanderpool: 289 hours x 90% - 6.5 hours for motion = 253.6 x $450/hour = $114,120.00

Total before multiplier: $588,335.00

Total after 1.65x multiplier: $970,752.75

Defendant is ORDERED to pay plaintiff attorney fees of $970,752.75, paralegal fees of $4,650, and expert fees of $11,862.50, for a total of $987,265.25.

Clerk to give notice.

8	**Dang vs. Nguyen 30-2024-01403534-CU-OR-CJC**	**Demurrer to Second Amended Complaint** The demurrer to second amended complaint of defendants Vinh The Nguyen and Van Nguyen is OVERRULED in part and SUSTAINED in part. <u>Second Cause of Action for Promissory Estoppel - OVERRULED</u> The court already addressed defendants' arguments on the second cause of action for promissory estoppel in ruling on defendants' motion for judgment on the pleadings on the first amended complaint. There has been no substantial change in pleading. The court will not change its prior ruling and cautions counsel to refrain from raising in subsequent motions identical issues previously ruled upon. <u>Fourth Cause of Action for Quiet Title – SUSTAINED with 10 days leave to amend</u> While Plaintiff alleges she has "tendered the full repayment of the secured amount to Freedom Mortgage" (SAC ¶ 76), the SAC does not address the $700,000 loan from Alliance Portfolio, which was also secured by a deed of trust recorded against the property. (SAC ¶ 9.) The declaration relied on by Plaintiff purporting to show the loan was paid in full is not appropriate in opposing a demurrer. **Motion to Strike Portions of Second Amended Complaint** The motion to strike portions of second amended complaint of defendants Vinh The Nguyen and Van Nguyen is GRANTED in part. Plaintiff has sufficiently alleged facts supporting a prayer for specific performance concerning repayment of the two additional loans. Plaintiff has also sufficiently alleged a cause of action for fraud (i.e., intentional misrepresentation), which supports punitive damages. The motion is DENIED on these grounds. However, Plaintiff has not alleged any contract, statute or law which allows for the recovery of attorney fees or statutory damages. The motion is GRANTED on this ground. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.